



U.S. Department
of Transportation

Research and
Special Programs
Administration

MAY 12 1995

400 Seventh Street S.W.
Washington, D.C. 20590

DOT-E 11460

EXPIRATION DATE: June 15, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Allied Signal Incorporated, Morristown, New Jersey.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the one-time transportation in commerce of a certain uninsulated DOT Specification MC 331 cargo tank containing Trifluorochloroethylene, a Division 2.3 material. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Sections 172.102(c) Special Provision B14.
5. BASIS. This exemption is based on Allied Signal's emergency application dated May 1, 1995, submitted in accordance with 49 CFR 107.113 and the public process thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description/proper shipping name	Hazard Class/Division	Identification number	Packing Group
Compressed or Liquified gases, flammable, toxic, n.o.s., <u>Inhalation Hazard Zone C</u> (Trifluorochloroethylene)	Division 2.3	UN1953	N/A

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING - Packaging prescribed is a DOT Specification MC 331 cargo tank which does not meet the insulation requirements of 49 CFR 172.102(c) Special Provision B14. Only the following cargo tank is authorized: serial #57578.

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- b. DRIVER TRAINING AND INSTRUCTIONS - Drivers must be given written instructions regarding emergency procedures including those pertaining to actions to be taken in case of exposure to fire.
- c. MARKING - The prescribed cargo tank must be marked "DOT-E 11460".
- 8. SPECIAL PROVISIONS. Not as a requirement of this exemption.
- 9. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
- 10. MODAL REQUIREMENTS: The carrier must have a "Satisfactory" safety rating and must be registered in accordance with Subpart G of Title 49 CFR Parts 100 to 177.
- 11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by Federal hazardous materials transportation law 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.

12. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

MAY 12 1995

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA